

2:00 PM

LINE: 6

25-CIV-09320

BART D. KIMBER VS. JOE TORRES, ET AL

BART D. KIMBER
JOE TORRES

PRO SE
WILLIAM B. LUTON

DEFENDANTS ALL RISK SHIELD, INC. and JOE TORRES' MOTION TO TRANSFER AND/OR CHANGE VENUE

TENTATIVE RULING:

For the reasons stated below, the motion to change venue to San Luis Obispo County is **GRANTED** pursuant to CCP §396b. Defendants have offered evidence to show that San Mateo County is neither their residence nor principal place of business. When a plaintiff brings an action against several defendants, both individual and corporate, in a county which is neither the residence nor principal place of business of any defendant, an individual defendant has a right to a change of venue to the county of his residence even though venue as initially laid may otherwise be justifiable upon one of the grounds in §395.5. *Carruth v. Superior Court* (1978) 80 Cal.App.3d 215, 220-221.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE: 7

25-CLJ-00488

WELLS FARGO BANK, N.A. VS. INAS S SHAABAN

WELLS FARGO BANK, N.A.
INAS S SHAABAN

HARLAN M. REESE
PRO SE

DEFENDANT INAS SHAABAN'S MOTION TO QUASH SUMMONS

TENTATIVE RULING:

As an initial matter, Defendant's notice identifies an incorrect hearing location. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. (See Cal. Rules of Court, rule 3.1110 [the notice "must specify" the location of the hearing].)

For the following reasons, the Motion to Quash Service of Summons (the "Motion") brought by specially appearing defendant Inas S. Shaaban ("Specially Appearing Defendant") is **DENIED**.

BACKGROUND

According to the Complaint, the parties entered into a credit card agreement on or about November 1, 2017. (Complaint, box BC-1 & Exh. A.) Plaintiff seeks to recover \$13,400.93 in damages, together with attorney's fees and costs according to proof, less any payments not already credited. (Id., boxes 10, BC-4, & BC-5.) Plaintiff alleges that Specially Appearing Defendant breached the agreement by failing to make the required payments. (Id., box BC-2.)

Through the Motion, Specially Appearing Defendant seeks an order quashing service of the summons on the ground that the Court lacks personal jurisdiction because service of the summons and complaint was defective. (Code Civ. Proc., § 418.10, subd. (a)(1).)

DISCUSSION

A motion to quash service of summons for lack of personal jurisdiction is an evidentiary motion. When the evidence concerning jurisdictional facts is conflicting, the trial court resolves those factual disputes, and its findings will not be disturbed on appeal if supported by substantial evidence. (*Messerschmidt Dev. Co. v. Crutcher Resources Corp.* (1978) 84 Cal.App.3d 819, 825, citing *Wilson v. Eddy* (1969) 2 Cal.App.3d 613, 617-618.)

Specially Appearing Defendant declares that she learned of this lawsuit from a legal aid attorney who is not representing her. (Shaaban Decl., ¶ 3.) However, neither a default nor a judgment has been entered in this action. She further declares that she had not resided at the address where service was attempted for approximately four years before January 7, 2026. (Id., ¶¶ 2, 4, & 5.) That four-year period includes October 16